

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Liliana Manuel	Team: Squad #3	CCRB Case #: 201507182	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 08/26/2015 10:03 AM	Location of Incident: Jerome Avenue and West Tremont Avenue	Precinct: 46	18 Mo. SOL 2/26/2017	EO SOL 2/26/2017	
Date/Time CV Reported Wed, 08/26/2015 10:39 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/26/2015 10:39 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Gabriel Baaith	25605	942970	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Erica Lloyd	02730	930576	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Gabriel Baaith	Discourtesy: PO Gabriel Baaith acted rudely toward § 87(2)(b) [REDACTED]	[REDACTED]
B.POM Gabriel Baaith	Abuse: PO Gabriel Baaith refused to provide his name and/or shield number to § 87(2)(b) [REDACTED]	[REDACTED]
C.POM Gabriel Baaith	Abuse: PO Gabriel Baaith threatened to arrest § 87(2)(b) [REDACTED]	[REDACTED]

Case Summary

§ 87(2)(b) filed the following complaint via phone on August 26, 2015. On August 26, 2015, at approximately 10:00 a.m., § 87(2)(b) was pulled over on Jerome Avenue and West Tremont Avenue in the Bronx by PO Gabriel Baaith and Sgt Erica Lloyd of the 46th Precinct. With § 87(2)(b) was his § 87(2)(b)-year-old son, § 87(2)(b) and § 87(2)(b)'s mother, § 87(2)(b). § 87(2)(b) was on the phone with § 87(2)(b)'s girlfriend, § 87(2)(b) at the time of the incident. PO Baaith issued § 87(2)(b) a summons for § 87(2)(b) (Board review 1). PO Baaith allegedly threw § 87(2)(b)'s summons, license, and registration on the ground (**Allegation A**). Mr. § 87(2)(b) asked PO Baaith for his shield number, which PO Baaith allegedly refused to provide (**Allegation B**). § 87(2)(b) approached the RMP, at which point PO Baaith told him that if he blocked the RMP he would be arrested (**Allegation C**). § 87(2)(b) recorded three videos during the incident (Board review 2; 15; 16; 17). Only one of the videos shows his interactions with PO Baaith and Sgt Lloyd. The video is embedded below (Board review 15).

Embedded Media File



201507182_20151109_1658_DM.mp4

Mediation, Civil and Criminal Histories

- Mediation was presented to § 87(2)(b) on August 26, 2015, and August 31, 2015. He rejected mediation.
- As of September 2, 2015, § 87(2)(b) has not filed a Notice of Claim with the City of New York with regard to this incident (Board review 3).

Civilian and Officer CCRB Histories (Board review 4; 5)

- This is the second CCRB complaint filed by § 87(2)(b) § 87(2)(b) § 87(2)(b)
- PO Baaith has been a member of the NYPD for eight years. He has had seven previous CCRB cases involving seventeen allegations with three of them substantiated. § 87(2)(g)
 - In case 200815572, PO Baaith allegedly frisked and used force against a civilian, and entered a civilian's residence. The three allegations were substantiated and PO Baaith received a total of 20 days of suspension.

Findings and Recommendations

Allegations Not Pleaded

- Refusal to provide name and/or shield number – § 87(2)(b) alleged that he asked PO Baaith for Sgt Lloyd's shield number, and that while standing in front of the RMP filming the license plate, he asked for Sgt Lloyd's shield number again. Sgt Lloyd did not provide her shield number to him. The video footage shows that he did not ask for Sgt Lloyd's shield

number while standing in front of the RMP. Furthermore, officers are not required to provide the names or shield numbers of fellow officers. § 87(2)(g)

Allegation A – PO Baaith acted rudely toward § 87(2)(b)

§ 87(2)(b) provided a phone statement on August 26, 2015, and a sworn statement to the CCRB on August 31, 2015 (Board review 13; 14). § 87(2)(g) § 87(2)(b) alleged that when PO Baaith returned to his vehicle with the summons and § 87(2)(b)'s license and registration, PO Baaith did not attempt to hand the documents to § 87(2)(b) § 87(2)(b) did not refuse to take the documents. § 87(2)(b) exited his vehicle to speak with PO Baaith, and the officers proceeded to their RMP. When § 87(2)(b) closed the car door he saw his license and registration on the ground. His summons had blown away in the wind and was found down the street. § 87(2)(b) did not see PO Baaith place the documents on the ground. § 87(2)(b) provided a sworn statement to the CCRB on August 31, 2015. § 87(2)(g) § 87(2)(b) and she too did not see PO Baaith put the documents on the ground.

Sgt Lloyd was interviewed on October 5, 2015, and PO Baaith was interviewed on October 9, 2015 (Board review 7; 8). Both Sgt Lloyd and PO Baaith stated that PO Baaith held his arm out to give § 87(2)(b) his summons and documents but § 87(2)(b) would not take them. PO Baaith claimed he told § 87(2)(b) to take the documents and that § 87(2)(b) replied, "No." Both officers alleged that after refusing to take the documents, § 87(2)(b) opened his car door at which point PO Baaith placed the documents on the roof of the car. PO Baaith explained that he did so because § 87(2)(b) had refused to take them and because he wanted to have both hands free as a safety precaution, as there can be safety concerns when civilians exit their cars during a stop. Both officers agreed that the documents blew off of the car in the wind and landed on the ground.

It is undisputed that § 87(2)(b)'s summons and documents were on the ground after § 87(2)(b) exited his vehicle. Neither § 87(2)(b) nor § 87(2)(b) saw PO Baaith place the documents on the ground. Both officers agreed that PO Baaith placed them on the roof of the car when § 87(2)(b) exited the vehicle, and PO Baaith's reasoning for placing the documents on the car is plausible. § 87(2)(g)

Allegation B – PO Gabriel Baaith refused to provide his name and/or shield number to § 87(2)(b)

§ 87(2)(b) explained that when PO Baaith returned to his vehicle with the summons, § 87(2)(b) stated to PO Baaith, "I need to get out of the car because I want to get your badge number and your partner's badge number." § 87(2)(b) claimed that PO Baaith ignored his request and proceeded to the RMP. § 87(2)(b) walked in front of the RMP and while filming the RMP's license plate, he stated that he needed the officers' shield numbers again. He then walked to PO Baaith's window and asked PO Baaith for his shield number again. At no point did PO Baaith provide his name or shield number to § 87(2)(b) § 87(2)(b) began filming the incident on his phone after his initial request for the officers' shield numbers. In the footage he can be heard

loudly requesting PO Baaith's shield number while standing in front of the RMP. PO Baaith's window is open.

§ 87(2)(b) claimed that § 87(2)(b) asked PO Baaith for his shield number approximately four to five times. She repeatedly heard PO Baaith reply that he would see § 87(2)(b) in court or that § 87(2)(b) would get his shield number in court, but at no point did § 87(2)(b) hear either officer state their names or shield numbers. § 87(2)(b) provided a sworn statement on August 31, 2015. She was on the phone with § 87(2)(b) during the incident and claimed to have heard § 87(2)(b) request an officer's shield number three to four times. She did not hear a reply.

Sgt Lloyd initially stated that § 87(2)(b) requested the officers' shield numbers. When later asked more details about the request, Sgt Lloyd denied her previous statement and claimed that she never heard § 87(2)(b) ask her or PO Baaith for their names or shield numbers. PO Baaith stated that when § 87(2)(b) stepped out of his car, he asked PO Baaith for his name and shield number. PO Baaith did not respond to his request, indicate to § 87(2)(b) that his information was on the summons, or gesture towards his name plate and shield. He could offer no reason why he would be unable to provide his information to § 87(2)(b). He did not recall hearing § 87(2)(b) ask for his name or shield number more than once.

Patrol Guide Procedure 203-09 states that officers are to courteously and clearly state their name and shield number upon request, or otherwise provide it to the individual requesting the information and allow the person ample time to note the information (Board review 9).

§ 87(2)(g)

Allegation C – PO Gabriel Baaith threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that while standing in front of the RMP, PO Baaith told him that he could be arrested for blocking the RMP if he did not move. PO Baaith can be heard in the video footage stating, "If you're blocking the car you're going in cuffs." PO Baaith confirmed that he stated this to § 87(2)(b) and that § 87(2)(b) could have been arrested for obstructing governmental administration.

Penal Law 195.05 states that "a person is guilty of obstructing governmental administration when he intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference..." (Board review 10).

§ 87(2)(g)

Squad: ____

Investigator:	_____	_____	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date